

Tata AIA Life Insurance Shubh Flexi Pension Plan (UIN: 110N209V01)

Non-linked, Non-Participating, Individual Annuity Plan

Tata AIA Shubh Flexi Pension Plan

Non-linked, Non-participating Annuity Plan (Individual)

PART B

Tata AIA Life Insurance Shubh Flexi Pension Plan is a Non-linked, Non-Participating, Individual Annuity Plan.

- Regular Pay: Equal to Premium Payment Term
- Limited Pay: Between Premium Payment Term + 1 to Premium Payment Term + 20 years

BASIC DEFINITIONS

In this Policy:

“**Assignee**” is the person to whom the rights and benefits under the Policy can be transferred, in accordance with the provisions of Section 38 of Insurance Act, 1938 as amended from time to time.

“**Assignment**” is the process of transferring the rights and benefits to an “assignee”, in accordance with the provisions of Section 38 of Insurance Act, 1938 as amended from time to time.

“**Age**” shall be the age as on the last birthday, i.e. the age of the Annuitant in completed years as on Date of Commencement of Policy and is as shown in the Policy Schedule.

“**Beneficiary/ Claimant**” means the Policyholder or the Annuitant or the Nominee, the assignee or the legal heir of the Policyholder.

“**Date of Payment of Premium**” means the date on which premium payment is received by the Insurer in accordance with the provisions of Section 64 VB (2) of The Insurance Act, 1938.

“**Deferment Period**” is the period measured in years from the inception of the policy, during which no annuity is payable and is chosen at inception under Options 3 and 5. The Deferment Period chosen can be as below, subject to annuity start age limit:

- Single Pay: Between 1 to 20 years

“**Grace period**” for other than single premium policies means the time granted by Us from the due Date of Payment of Premium, without any penalty or late fee, during which time the policy is considered to be in-force with the risk cover without any interruption, as per the terms & conditions of the Policy. The grace period for payment of the premium for all types of life insurance policies shall be 15 (fifteen) days, where the policyholder pays the premium on a monthly basis and 30 (thirty) days in all other cases.

“**IRDAI/ IRDA of India/ Authority**” means Insurance Regulatory and Development Authority of India.

“**Nominee**” means the person named in the Policy Schedule who has been nominated in accordance with Section 39 of the Insurance Act, 1938 as amended from time to time to receive benefits in respect of this Policy.

“**Nomination**” is the process of nominating a person(s) in accordance with the provisions of Section 39 of the Insurance Act, 1938 as amended from time to time.

“**Non-Participating**” means products where policies are not entitled for any share in surplus (profits) during the term of the Policy.

“**Policy**” means the contract of insurance entered into between You and Us as evidenced by this document, the Proposal Form, the Policy Schedule and any additional information/document(s) provided to Us in respect of the Proposal Form along with any

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written instructions from You subject to Our acceptance of the same and any endorsement issued by Us.

“Policy Anniversary” refers to the same date each year as the Date of Commencement of Policy.

“Policy Month” refers to the period of one month starting from the Date of Commencement of Policy.

“Proposal Form” means the form filled in and completed by You for the purpose of obtaining insurance coverage under the Policy;

“Purchase Price” means total of all the premiums payable, excluding extra premium, any rider premium, and taxes.

“Date of Revival” is the approval date of revival of the Policy and /or Supplementary Contract.

“Revival” means restoration of the Policy, which was discontinued due to the non-payment of premium, by the insurer with all the benefits mentioned in the Policy document, with or without Rider benefits if any, upon the receipt of all the premiums due or late fee if any, during the Revival Period, as per the terms and conditions of the Policy, upon being satisfied as to the continued insurability of the Annuitant or Policyholder on the basis of the information, documents and reports furnished by the Policyholder, in accordance with Board approved underwriting policy.

“Revival Period” means the period of 5 (five) consecutive complete years from the date of first unpaid premium.

“Rider” means the insurance cover(s) added to a base product for additional premium or charge.

“Rider benefits” means an amount of benefit payable on occurrence of a specified event covered under the rider and is an additional benefit to the benefit under the base product, and

may include waiver of premium benefit on other applicable riders.

“Surrender” means complete withdrawal or termination of the entire Policy contract.

“Surrender Value” means an amount, if any, that becomes payable on Surrender of a Policy during its term, in accordance with the terms and conditions of the Policy.

“Total Premiums Paid” means total of all the premiums received under the base product including top-ups premium paid, if any.

“We”, “Us”, “Our”, “Insurer” or “Company” refers to Tata AIA Life Insurance Company Limited.

“You”, “Your” or “Policyholder” means holder of this Policy.

Interpretation:

Whenever the context requires, the masculine form shall apply to feminine and singular terms shall include the plural.

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PART C

Tata AIA Life Insurance Shubh Flexi Pension Plan is a Non-linked, Non-Participating, Individual Annuity Plan which provides for payment of regular level or level plus variable annuity as per the frequency of payment chosen by the Annuitant.

This product is also available under Point-of-sale variant.

Applicable rider/s can be attached with effect from the inception of the Policy or at any Policy Anniversary of the base plan, subject to the rider premium payment term and the policy term shall not be more than the outstanding premium payment term and outstanding Deferral Period for the base plan. If there is an overlap in benefit offered under different riders with the base product, then that benefit under the rider will not be offered. In case the product is purchased under Point-of-sale variant, then no rider can be attached.

The options available under this product are as follows:

1. PURCHASE OPTIONS

a) Utilization of Return of Purchase price for National Pension Scheme (NPS) subscribers

This plan can be availed as an option by a NPS subscriber through funds accumulated in his/her NPS.

The Company shall offer an additional annuity of 1.50% of the annuity rate.

b) Option to purchase this plan as QROPS (Qualifying Recognized Overseas Pension Scheme):

This plan can be purchased as QROPS, through transfer of UK tax relieved assets subject to listing and terms and conditions prescribed by Her Majesty Revenue & Customs (HMRC) such as:

- Minimum entry age for annuity payment shall be 55 years (last birthday).

- If the policy is cancelled during the Free Look Period, the proceeds from cancellation shall only be transferred back to the fund house from where the money was received.

Other terms and conditions of HMRC shall also apply as applicable from time to time.

2. ANNUITY OPTIONS

The plan offers the following annuity options, one of which must be selected at the time of purchase and cannot be altered later:

- Option 1 – Immediate Life Annuity
- Option 2 – Immediate Life Annuity with Y% of Return of Purchase Price
- Option 3 – Deferred Life Annuity with Y% of Return of Purchase Price
- Option 4 – Immediate Life Variable Annuity with Return of Purchase Price
- Option 5 – Deferred Life Variable Annuity with Return of Purchase Price

The benefits payable under each option as listed above have been detailed in the respective sections below.

All options are available on a single life basis only.

Option 1 – Immediate Life Annuity

A level annuity shall be payable till the Annuitant is alive. The payment of annuity shall commence immediately as per the frequency chosen.

No death benefit shall be payable under this option.

Option 2 – Immediate Life Annuity with Y% of Return of Purchase Price

A level annuity shall be payable till the Annuitant is alive. The payment of annuity shall commence immediately as per the frequency chosen.

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Death benefit, as described under Clause 1 of Part C, shall be payable. The multiple (Y%) can range from 50% to 100% in multiples of 5%, as chosen by the Policyholder at inception and cannot be changed later.

Option 3 – Deferred Life Annuity with Y% of Return of Purchase Price

The annuity shall be payable till the Annuitant is alive. The payment of annuity shall commence post the end of the Deferment Period as per the frequency chosen.

During the Deferment Period, Guaranteed Additions accrue at the end of each completed Policy Month, subject to all due premiums being paid and shall form a part of the Death Benefit during deferment as offered under the option.

Death benefit, as described under Clause 1 of Part C, shall be payable. The multiple (Y%) can range from 50% to 100% in multiples of 5%, as chosen by the Policyholder at inception and cannot be changed later.

Option 4 – Immediate Life Variable Annuity with Return of Purchase Price

The annuity shall be payable till the Annuitant is alive. The payout of annuity shall comprise of guaranteed annuity and variable annuity and the same shall commence immediately as per the frequency chosen.

Death benefit, as described under Clause 1 of Part C, shall be payable.

Option 5 – Deferred Life Variable Annuity with Return of Purchase Price

The annuity shall be payable till the Annuitant is alive. The payout of annuity shall comprise of guaranteed annuity and variable annuity and the same shall commence post the end of the Deferment Period as per the frequency chosen.

During the Deferment Period, Guaranteed Additions accrue at the end of each completed Policy Month, subject to all due premiums being paid and shall form a part of the Death Benefit during deferment as offered under the option.

Death benefit, as described under Clause 1 of Part C, shall be payable.

The details of the benefits are as follows:

1. DEATH BENEFIT

Upon the death of the Annuitant during the term of the Policy, provided the Policy is in force, the following Death benefit shall be payable:

Option 1 – Immediate Life Annuity

No death benefit shall be payable

Option 2 – Immediate Life Annuity with Y% of Return of Purchase Price

Y% of Total premiums Paid till date shall be payable. The multiple (Y%) can range from 50% to 100% in multiples of 5%, as chosen by the Policyholder at inception.

Option 3 – Deferred Life Annuity with Y% of Return of Purchase Price

Within Deferment Period:

Death benefit shall be higher of -

- Total Premiums Paid up to date of death + Accrued Guaranteed Additions, and
- 105% of Total Premiums Paid (excluding loading for modal premiums) up to date of death.

Post Deferment Period:

Y% of Total Premiums Paid shall be payable. The multiple (Y%) can range from 50% to 100% in multiples of 5%, as chosen by the Policyholder at inception.

Guaranteed Additions:

During the Deferment Period, Guaranteed Additions shall accrue at the end of each completed Policy Month, subject to all due premiums being paid and shall form a part of the Death Benefit during deferment as offered under the option. The Guaranteed Additions are equal to 1/12th of 6% of the Total Premiums Paid (excluding loading for modal premiums). No further Guaranteed Additions shall accrue once the Policy has lapsed or been converted to a Reduced Paid-up Policy.

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Option 4 – Immediate Life Variable Annuity with Return of Purchase Price

Total Premiums Paid till date of death shall be payable upon death of the Annuitant.

Option 5 – Deferred Life Variable Annuity with Return of Purchase Price

Within Deferment Period:

Death benefit shall be higher of

- Total Premiums Paid up to the date of death + Accrued Guaranteed Additions, and
- 105% of Total Premiums Paid (excluding loading for modal premiums) up to date of death.

Post Deferment Period:

Death benefit shall be equal to the Total Premiums Paid.

Guaranteed Additions:

During the Deferment Period, Guaranteed Additions shall accrue at the end of each completed Policy Month, subject to all due premiums being paid and shall form a part of the Death Benefit during deferment as offered under the option. The Guaranteed Additions are equal to 1/12th of 6% of the Total Premiums Paid (excluding loading for modal premiums). No further Guaranteed Additions shall accrue once the Policy has lapsed or been converted to a Reduced Paid-up Policy.

In addition to the above, under all the options, the balance in the Sub-wallet, if any, will be paid at the time of death of the Annuitant.

The Policy shall terminate upon payment of Death Benefit, and no other benefit shall be payable.

2. SURVIVAL BENEFIT

Upon survival of the Annuitant during the Policy Term, below survival benefit shall be payable, except within the Deferment Period:

Option 1, 2 & 3

Annuity shall be payable as per payment frequency chosen upon survival of the Annuitant.

Option 4 & 5

Annuity payable shall be equal to sum of Guaranteed Annuity and Variable Annuity and shall be payable as per payment frequency chosen.

Guaranteed Annuity (GA):

The GA is calculated by multiplying the Initial Annuity Amount (IAA) with the guaranteed proportion (gtd%) selected by the Policyholder. The available guaranteed proportions are 60%, 70%, 80%, and 90%. Once selected at the inception of the Policy, this proportion cannot be changed later. Such Guaranteed Annuity shall remain fixed throughout the term of the Policy & shall not change basis index movement.

IAA for Option 4 & 5 is the yearly annuity as applicable under life annuity with 100% Return of purchase price of Option 2 & 3 respectively. Modal factors shall be applicable for frequency other than annually in arrears as per Clause 7 of Part F.

Variable Annuity (VA):

The Variable Annuity at every rebase time “t” is determined as follows:

- **On first annuity payment date:**

$VA(t)$

$$= IAA * (1 - gtd\%)$$

$$* \frac{\text{Accumulated Premium @ Net Index Return}}{\text{Accumulated Premium @ AIR}}$$

- **After the first annuity payment date:**

$VA(t)$

$$= \text{Last Rebased VA}$$

$$* \frac{(1 + \text{Net Index Return from last rebase date})}{(1 + \text{AIR})}$$

Where:

1. Net Index return is Index return from last rebase date minus spread of 0.5% p.a. where spread is on account of insurer's charges.
2. Suppose Index value at 1st April 2025 was 100 and at 1st July 2025 it was 102.5, then Net index return shall be $102.5/100 - 0.5\%/4 = 2.5\% - 0.125\% = 2.375\%$
3. AIR is Assumed interest return (7% p.a.). If frequency of rebasing is quarterly, then AIR shall be based on quarterly derivation. AIR shall be fixed for full term of the policy. AIR shall be calculated from last rebase date to new rebase date
 - Rebasing date is taken as end of each policy year's quarter.

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- *No rebasing shall apply on annuity payments made before the end of first 3 months from policy's inception; hence variable annuity during this period shall be equal to $LAA * (1 - gtd\%)$. Annuity payment made at the end of 3rd month shall be based on rebased returns.*
- *Index applicable is NIFTY 50*
- *Accumulated premium is calculated basis premiums received*

Determination of Index Returns/Value for Benefit Calculation

- On Receipt of Premiums → Index value of the next business day after premium receipt shall be considered.
- On Surrender/withdrawal value calculation → Index value of the business day preceding the surrender request date shall be considered, i.e. return on surrender request date shall be taken *nil*.
- Quarterly rebasing for annuity payments → Index value of the business day preceding the end of policy's quarter shall be considered. Annuity payments made till next rebase date shall be based on the rebased amount as mentioned above.

This shall be payable as per the payment frequency chosen upon the survival of the Annuitant.

3. OPTIONAL FEATURES:

3.1 SUB-WALLET

At inception of the Policy or any time during the Policy Term, You can choose to receive full or part of the benefits into the 'Sub-Wallet'. If opted, You shall receive full or part of his benefits into his 'Sub-Wallet', as per the chosen Pay-out frequency, as follows:

- You shall receive the cash bonus as per the chosen Pay-out frequency into Your designated bank account as per Our records.

- The balance in the sub-wallet shall earn a loyalty addition which shall accrue on a monthly compounded basis. The Loyalty rate shall be equal to Standing Deposit Facility (SDF) rate published by RBI on its website. The prevailing SDF rate is 5.25% p.a. The rate shall be reviewed every two months.
- The Company may, in future, change the reference rate from SDF Rate to other index, subject to prior approval of relevant regulatory authority.
- You may withdraw the balance (if any), partially or in full, anytime during the Policy Term through the sub-wallet provided by service provider(s) empanelled by the Company, from time to time. Such an arrangement, can be done with entities that are regulated by Department of Payment and Settlement Systems (DPSS), Reserve Bank of India, and are governed by Master Directions on Prepaid Payment Instruments, or other entities licenses/authorized by the relevant regulator/authority, to provide additional payment options to the policyholder – such as IMPS, virtual prepaid cards or other similar options to withdraw money from the Prepaid Payment Instrument or other appropriate account/instrument as authorized by the relevant regulator. If You do not withdraw the balance in the Sub-wallet (if any) during the Policy Term, it shall be paid at the time of termination or foreclosure of the Policy, subject to any recovery of any outstanding loan and interest thereon as per Policy terms and conditions.
- The balance in the Sub-wallet, if any, shall be paid to You at the time of termination or foreclosure of the policy, subject to any recovery of any unpaid debt as per policy terms and conditions.
- You can dynamically set / amend the proportion of the benefit receivable into his Sub-wallet any time during the Policy Term by prior intimation to the Company.

Procedure to Withdraw Balance from Sub-wallet:

Step 1 – You may visit Our nearest branch/contact us through any of modes mentioned in the

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'Customer Information' section at Part G and apply for the withdrawal from Sub-wallet or visit Our online customer portal. You may submit a request to withdraw part or full Sub-wallet balance.

Step 2 – Money transfer will be initiated into customer's designated account, subject to sufficient balance in Sub-wallet.

Our website (www.tataaia.com) will display the details/steps that are involved in the withdrawal of cash bonus from Sub-wallet.

The Company will also endeavour to digitize the cash bonus withdrawal process and the same will be updated on the Company's website (www.tataaia.com) from time to time.

3.2 HEALTH MANAGEMENT SERVICES

Health Management Services

Annuitant of TATA AIA Life Insurance Shubh Flexi Pension Plan who are eligible for the Health Management Services shall be eligible to avail Second Opinion / Personal Medical Case Management / Medical Consultation services from service provider(s) affiliated to/registered with the Tata AIA Life Insurance Co. Ltd. The services are expected to assist the Annuitant to ascertain correct diagnosis of a medical condition and obtain due care for the Annuitant in case of illness.

These services are subject to:

- the availability of suitable service provider(s);
- primary diagnosis has been done by a registered medical practitioner as may be authorized by a competent statutory authority;
- Health Management Service is available to be utilised throughout the policy term, subject to prevailing eligibility conditions.
- the eligibility of the Annuitant as may be determined by Board Approved Underwriting Policy which will be reviewed periodically and updated on our website. The changes shall apply without any discrimination to all existing and new customers of the product. Policyholders

can check their eligibility by visiting our website or contacting the Call Centre.

- Whenever the eligibility criteria changes or the service is withdrawn, the same shall be communicated to all the policyholders. Prior to effecting any changes, we shall inform the same to IRDAI

Note:

- These services are aimed at improving Policyholder engagement and reducing exits from the Company's in-force book.
- The cost of these services is expected to be offset by either lower costs of claims or better economies of scale or higher revenue due to better persistency.
- These value-added services are completely optional for the eligible customer to avail
- For customers availing such services, they are offered at no additional cost to the Annuitant.
- Premiums charged to the policyholder shall not depend on whether such a service(s) is availed by the Policyholder.
- These services have been transparently stated in the Sales Literature and Policy Document with clear guidance on how to verify eligibility etc.
- The Annuitant may exercise his/her own discretion to avail the services.
- These services shall be directly provided by the service provider(s).
- The services can be availed only where the policy / rider is in-force.
- All the supporting medical records should be available to avail the service.
- We reserve the right to discontinue the service or change the service provider(s) at any time.
- The services are being provided by third party service provider(s) and we will not be liable for any liability.

4. FREQUENCY OF ANNUITY PAYOUT

The annuity payments shall be payable as per the chosen annuity payment frequency from the date of purchase of the plan (for Immediate Life

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Annuity variants) or from the end of Deferment Period (for Deferred Life Annuity variants), as follows:

Frequency	Annuity pay-out would start after
Annually in arrears	One year from the end of Deferment Period or end of Annuity start year
Half-yearly in arrears	Six months from the end of Deferment Period or beginning of Annuity Start Year
Quarterly in arrears	Three months from the end of Deferment Period or beginning of Annuity Start Year
Monthly in arrears	One month from the end of Deferment Period or beginning of Annuity Start Year
Annually in advance	End of Deferment Period or beginning of Annuity Start Year
Half-yearly in advance	End of Deferment Period or beginning of Annuity Start Year
Quarterly in advance	End of Deferment Period or beginning of Annuity Start Year
Monthly in advance	End of Deferment Period or beginning of Annuity Start Year

Annuity frequency can be changed at Policy Anniversary except when the annuity instalment will breach the minimum Annuity instalment as applicable.

Annuity instalments for frequencies, other than annual, shall be as specified below:

Frequency	Annuity Instalment (per frequency)
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Annually in arrears	100% of Yearly Annuity
Half-yearly in arrears	98% of Yearly Annuity x $\frac{1}{2}$
Quarterly in arrears	97% of Yearly Annuity x $\frac{1}{4}$
Monthly in arrears	96% of Yearly Annuity x $\frac{1}{12}$
Annually in advance	93% of Yearly Annuity
Half-yearly in advance	94.5% of Yearly Annuity x $\frac{1}{2}$
Quarterly in advance	95% of Yearly Annuity x $\frac{1}{4}$
Monthly in advance	95.5% of Yearly Annuity x $\frac{1}{12}$

Yearly Annuity refers to the Initial Annuity Amount paid in respect of frequency annually in arrears.

5. PREMIUM

- All Regular/Limited Premiums are payable on or before their due dates to Us.
- Change of Premium is not allowed.

6. GRACE PERIOD

- The Premium is due and payable by the due date specified in the Schedule. If the Premium is not paid by the due date, You may pay the same during the Grace Period without any interest. The Policy will remain in force during this period.
- During the Grace Period, if the overdue Premium is not paid and the Annuitant dies, then We shall pay the Death Benefit after deducting the due Premium (without interest) for the Policy Year.

7. PAYMENT OF BENEFITS

The benefit under the Policy shall be payable to the Claimant who will be either the Policyholder, Annuitant, Nominee(s), Assignee(s), Legal Heir(s) or a legal representative as declared by a Court of competent jurisdiction. Once the benefits under this

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Policy are paid to a Claimant, the same shall constitute a valid discharge of Our liability under this Policy.

PART D: GENERAL CONDITIONS

1. FREE LOOK PERIOD

If the Annuitant is not satisfied with the terms & conditions of the policy, s/he has the right to cancel the Policy by providing written notice to the Company and receive a refund of all premiums paid without interest after deducting stamp duty and medical examination costs, if any which have been incurred for issuing the Policy. In case any annuity payment has been made before processing of the Free Look cancellation amount, it shall be recovered from the refund amount due to the Policyholder.

Such notice must be signed by the Annuitant and received directly by the Company within 30 days after the Annuitant receives the Policy Document.

However, the following exceptions apply:

- If the policy is purchased through proceeds from subscribers NPS, the proceeds from cancellation in the free-look period shall only be transferred back to the Central Record Keeping Agency from where the money was received.
- If the policy is purchased as part of bulk annuity, the proceeds from cancellation in the free-look period shall only be transferred back to the source as per applicable scheme rules.
- If the policy has been purchased as QROPS, the proceeds from cancellation shall only be transferred back to the fund house from where the money was received.

2. LAPSE

If the due Premium is not paid within the Grace Period and if at least 1 (one) full years' Premiums has not been paid (except in case of Single Pay Policy), the Policy will lapse from the due date of first unpaid Premium and no benefits will be payable.

Such discontinued policy can be revived within the period of 5 (five) years from the due date of first unpaid premium by payment of all due premiums together with interest. Upon revival of the Policy, all benefits shall be restored and be applicable with effect from the date of revival.

3. NON-FORFEITURE PROVISIONS

I. Non-Forfeiture Benefit on Premium Discontinuance:

If any due premium for a Policy remains unpaid at the end of the Grace Period, the cover ceases to exist, and the following benefit shall be payable -

- Option 1: No surrender benefit is applicable.
- Option 2 to 5: Surrender Value shall be payable basis the Premium Payment Mode as defined below:

Premium Payment Mode	When Surrender Value payable
Single Pay	At any time after Policy Commencement Date
Regular / Limited Pay	Payable after completion of first Policy Year provided at least 1 full year's premium has been paid

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II. Surrender Benefit

- Option 1: No surrender benefit is applicable.
- Option 2 & 4: Surrender Value shall be equal to Special Surrender Value.
- For Options 3 & 5: Surrender Value shall be Maximum of Guaranteed Surrender Value (GSV) and Special Surrender Value (SSV)

Please refer www.tataaia.com for applicable GSV and SSV.

In addition to the above, under all the options, the balance in the Sub-wallet, if any, will be paid to the Policyholder upon surrender.

4. REDUCED PAID-UP BENEFIT:

Provided the Policy has acquired Surrender Value, if subsequent Premium remain unpaid at the end of Grace Period, the Policy shall be converted into a Reduced Paid-up Policy by default.

Reduced Paid-up policy is a default non-forfeiture benefit. Reduced Paid-Up Policy, shall continue as Reduced Paid-Up Policy unless revived within Revival Period by payment of all due Premium together with interest as mentioned in Clause 5 ("Revival") of Part D.

In case of Reduced Paid-up Policy, the benefit shall be payable as under:

• Death Benefit:

Death Benefit (As per Clause 1 of Part C) shall be payable.

• Survival Benefit

- Option 1, 2 & 4: No benefit payable.
- Option 3: Yearly Annuity multiplied by RPU Factor
- Option 5: Sum of RPU Guaranteed Annuity and RPU Variable Annuity shall be payable which shall be as follows:
 - RPU Guaranteed Annuity = Guaranteed Annuity multiplied by RPU Factor
 - RPU Variable Annuity = Variable Annuity multiplied by RPU Factor

Where, RPU factor shall be a ratio calculated as the total period for which premiums have already been paid divided by the maximum period for which premiums were originally payable.

- **Surrender Benefit:** As per Clause 3 of Part D.

5. REVIVAL

If a premium is in default beyond the Grace Period and subject to the Policy not having been surrendered, it may be reinstated/revived, within five years after the due date of first unpaid premium and before the end of the deferment period, subject to : (i) Policyholder's written application for reinstatement/revival; (ii) production of Annuitant's current health certificate and other evidence of insurability, satisfactory to the Company; and (iii) payment of all overdue premiums with interest.

The evidence of insurability and any medical requirements or health declarations requested at the time of revival shall be in line with the Board approved Underwriting Policy.

Any revival shall only cover loss or insured event which occurs after the revival date.

The applicable interest rate for revival is determined under the SBI domestic term deposit rate for '1 year to less than 2 years', plus 2%. The rate of interest on revival with effect from 1st April 2025 is 8.40% simple p.a. (i.e. SBI interest rate of 6.40% + 2%) plus applicable taxes. The interest rate applicable is reviewed every 6 months and gets updated as per the given formula. Any alteration in the formula shall be subject to prior approval of IRDAI.

6. LOAN

On completion of one policy year for other than Option 1, provided one full year's premium is paid, policyholders may apply for a policy loan. The Policy shall be assigned to Tata AIA Life.

Maximum amount of loan that can be granted under the policy shall be such that:

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- It does not exceed 80% of surrender value
- The amount of loan plus interest till end of deferment period, if any, would not exceed 90% of the Total Premiums Paid (excluding loading for modal premiums) assuming no further premium payments, if any
- Effective annual interest amount payable on loan immediately (in case of Option 2 and 4) or post the end of deferment (in case of Option 3 and 5) would not exceed 50% of the annual annuity amount payable under the policy assuming no further premium payments, if any.
- The loan interest shall be recovered from the annuity amount payable under the policy. The loan interest shall accrue as per the frequency of annuity payment under the policy and it shall be due on the date of annuity. The loan outstanding shall be recovered from the claim proceeds under the policy. However, the Annuitant has the flexibility to repay the loan principal at any time during the course of the policy.
- For in force and fully paid-up policies, the policy shall not be foreclosed if the outstanding loan amount including interest exceeds the surrender value. However, for other than in-force and fully paid-up policies, if the outstanding loan amount including interest exceeds the surrender value, the policy shall be foreclosed after giving intimation and reasonable opportunity to the policyholder to continue the policy.
- Interest rate applicable to policy loan shall be calculated as the average annualized 10-year G-Sec yield (over last 6 months; rounded up to the nearest 50 bps) + 2%. The interest rate on loans is verified and updated on the Company's systems every six months (on 1st April and 1st October every year) as per the

given formula. The current interest rate for Loan from 1st October 2025 is 9.00% p.a. compounding annually. Any change in loan interest rate formula shall be implemented post approval of IRDAI.

7. TERMINATION OF POLICY

This Policy shall terminate upon the happening of any of the following events:

- i. On the date of payment of refund under a Freelook request.
- ii. On the date of payment of the benefits in accordance with the provisions of this Policy (as applicable).
- iii. On the date of payment of Surrender Benefit of this Policy.
- iv. On the date when the loan amount with accrued interest exceeds the Surrender Value.
- v. On the expiry of the Revival Period, if the Lapsed Policy has not been revived.
- vi. On cancellation/ termination of this Policy by Us on grounds of fraud, misstatement and suppression of a material fact established in terms of Section 45 of the Insurance Act, 1938 as amended from time to time.

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PART E

Not applicable for this Product.

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PART F: GENERAL PROVISIONS

1. POLICY CONTRACT

This Policy Contract is issued on the basis of the details provided by You in the Proposal Form and the Declaration signed by You, on receipt of the required Premium amount and any attached endorsement given at the time of issuing this Policy. The Policy, proposal for it, the Policy Schedule and any attached endorsements constitute the entire contract. The terms and conditions of this Policy cannot be changed or waived except by endorsement duly signed by Our authorized officer.

Your Policy consists of the basic insurance plan and any endorsements which may be attached to it.

If the Policy Contract is lost or destroyed, then at the request of the Policyholder, the Company will issue a duplicate Policy Contract, for a fee of Rs. 250/- along with the applicable tax and cess (if any). These charges are subject to revision by the Company from time to time.

2. EXCLUSIONS

2.1 SUICIDE EXCLUSION

In case of death due to suicide within 12 months from the Date of Commencement of the Policy or Date of Revival of the Policy, Your nominee or legal heir shall be entitled to at least 80% of the Total premiums Paid till the date of death or the surrender value available as on the date of death whichever is higher, provided the policy is in in force.

This is applicable for all Options except option 1.

3. FRAUD, MIS-STATEMENT OR SUPPRESSION

Any fraud, mis-statement or suppression of a material fact under the Policy shall be dealt in accordance with Section 45 of the Insurance Act,

1938 as amended from time to time. The simplified version of the provisions of Section 45 is enclosed in Annexure 4 for reference.

4. MISSTATEMENT OF AGE AND GENDER

This Policy is issued at the age and gender shown on the Policy Schedule which is the Annuitant's declared age at last birthday and declared gender in the proposal. If the age and/or gender is misstated and higher premium should have been charged, the benefit payable under this Policy shall be after deduction of such difference of premium along with interest thereon. In such cases, the policy shall be subject to re-underwriting and the Sum Assured shall be subject to Your eligibility as per Our Underwriting norms and the premium to be deducted shall be calculated proportionately on such Sum Assured payable. If the Annuitant's age/gender is misstated and lower premium should have been charged, the Company will refund any excess premiums paid without interest. If at the correct age/gender the Annuitant is not insurable under this Policy pursuant to our Underwriting rules, the Policy shall be void-ab-initio and the Company will refund the Total Premiums paid without interest after deducting all applicable charges like medical, Stamp duty, Risk, applicable taxes, cesses and levies etc., incurred by the Company under the Policy.

5. CLAIM PROCEDURE – DEATH CLAIMS REQUIREMENTS

Notice of Claim – All cases of death must be notified, within a period of 90 days, to us in writing. However, We may condone delay on merit for delayed claims where the reason for delay is proved to be for reasons beyond the control of the Claimant. In case of any delay on the part of the Company to process the claim within extant regulatory timeline, We shall pay interest as may be prescribed by the IRDAI from time to time.

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Please note that all death claims will be payable to the Claimant. Appropriate forms and supporting documents must be submitted, at the Claimant's expenses, within 90 days after the date the insured event happens, unless specified otherwise. A list of primary claim documents listing the normally required documents is attached to the Policy. Submission of the listed documents, forms or other proof, however, shall not be construed as an admission of liabilities by the Company. We reserve the right to require any additional proof and documents in support of the claim.

For processing the claim request under this Policy, we will require the following documents:

Type of Claim	Requirement
Death (All causes of death other than the Accidental Death)	a) Claim Forms Part I: Application Form for Death Claim (Claimant's Statement) along with NEFT form Part II: Physician's Statement - to be filled by last attending physician
	b) Death Certificate issued by a local government body like Municipal Corporation
	c) Medical Records (Admission Notes, Discharge/Death Summary, Indoor Case Papers, Test Reports etc.) ¹
	d) Claimant's Photo ID with age proof & relationship with the Annuitant along with Address proof of the claimant and Cancelled cheque with name and account number printed or cancelled cheque with copy of Bank Passbook / Bank Statement If no nomination - Proof of legal title to the claim proceeds (e.g. legal succession paper)

Type of Claim	Requirement
If Death due to Accident or an unnatural death (to be submitted in addition to the above)	e) In case of accidental death in addition to the above documents, we would require the following documents- - Postmortem report (Autopsy report) & Chemical Viscera report - if performed; # - All Police Papers – Panchnama, Inquest, First Information Report (FIR) and Final Investigation Report/Charge Sheet# - Newspaper cutting / Photographs of the accident - if available

¹This is applicable if Annuitant was in hospital at the time of death or any time prior to the date of death.

Medical records shall be required if Life Assured was in hospital at the time of death or any time prior to the date of death.

Please submit copies of the documents certified / attested by the issuing authority. (Original Seen Verified (OSV) by Branch Personnel will also be accepted)

Copies of the other documents to be submitted by self-attestation of the claimant

6. CLAIMS INTIMATION PROCESS

Please inform the company immediately upon occurrence of death.

A claim can be made through any of the following avenues: -

- Online claim intimation at <https://www.tataaia.com/premium-payment/claim-authentication.html>
- Email - claims@tataaia.com
- Call our helpline number 1-860-266-9966 (Call charges apply)
- Walk into any of the Company branch office
- Write directly to us on following address:
Claims Department:
Tata AIA Life Insurance Company Limited
9th Floor, B - Wing, I-Think Techno Campus
(Lodha)
Behind TCS, Pokhran Road No.2,

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Thane (West), Mumbai - 400 607

f) Write to your Agent/Intermediary

7. CHANGE OF FREQUENCY OF PREMIUM PAYMENT

You may change the frequency of Annuity premium payments by written request. Subject to Our minimum Premium requirements, Premiums may be paid on monthly, quarterly, half-yearly or annual mode at the Premium rates applicable on the Date of Commencement of Policy. Alteration in the frequency of Premium payment may lead to a change in the Premium.

The loading on Premium shall be applicable as below:

Mode	Modal Loading
Single Premium	Multiply Annual Premium Rate by 1
Annual	Multiply Annual Premium Rate by 1
Half – Yearly	Multiply Annual Premium Rate by 0.51
Quarterly	Multiply Annual Premium Rate by 0.26
Monthly	Multiply Annual Premium Rate by 0.0883

8. CHANGE IN ADDRESS OF POLICYHOLDER OR NOMINEE:

In order to provide You better services, We request You to intimate us in the event of any change in the address of the Policyholder or the nominee.

9. CURRENCY AND PLACE OF PAYMENT

All amounts payable either to or by Us will be paid in the Indian currency. Such amounts will be paid by a negotiable bank draft or cheque drawn on a bank or NEFT (National Electronic Funds Transfer) or electronic clearing systems. All amounts due from Us will be payable from Our

office shown on the Policy Schedule.

10. FREEDOM FROM RESTRICTIONS

Unless otherwise specified, this Policy is free from any restrictions upon the Annuitant as to travel, residence or occupation. Even though there are no restrictions under this Policy, the attached riders (if any) may have occupational exclusions for the cover as specified in the rider terms and conditions.

11. TAXES

All Premiums and interest payable under the policy are exclusive of applicable taxes, duties, surcharge, cesses or levies which will be entirely borne/ paid by the Policyholder, in addition to the payment of such Premium or interest. Tata AIA Life shall have the right to claim, deduct, adjust and recover the amount of any applicable tax or imposition, levied by any statutory or administrative body, from the benefits payable under the Policy.

Income tax benefits shall be available as per the prevailing tax laws subject to fulfilment of conditions stipulated therein. Tax laws are subject to change from time to time. Please consult Your own tax consultant to understand the tax benefits available to You.

12. PLAN CHANGE

Change of plan is not allowed.

13. NOMINATION

Nomination allowed as per provisions of Section 39 of the Insurance Act 1938 as amended from time to time.

The simplified version of the provisions of Section 39 is enclosed in Annexure 3 for reference.

14. ASSIGNMENT

Assignment allowed as per provisions of Section 38 of the Insurance Act 1938 as amended from time to time.

The simplified version of the provisions of Section 38 is enclosed in Annexure 2 for reference.

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15. GOVERNING LAW AND JURISDICTION

The provisions of this document shall be construed in accordance with the laws of India as may be amended from time to time and be subject to the jurisdiction of the competent court or any other statutory authority duly empowered in India.

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PART G: POLICY SERVICING AND GRIEVANCE HANDLING MECHANISM

1. POLICYHOLDER'S SERVICING

With regards to any query or issue related to the Policy, the Policyholder can contact the Company through the following service avenues

- Contact your Tata AIA Life Agent / Distributor
- Call our helpline number 1-860-266-9966 (Call charges apply)
- E-mail at customercare@tataaia.com
- Visit the nearest Tata AIA Life Branch or CAMS Service Center
- Log on to Online Customer Portal by visiting www.tataaia.com
- **Write to us on the following address:**
Tata AIA Life Insurance Company Limited
9th Floor, B - Wing, I-Think Techno Campus,
Behind TCS (Lodha), Pokhran Road No.2,
Thane (West), Mumbai – 400 607

2. GRIEVANCE REDRESSAL PROCEDURE

1) Resolution of Grievances

Customers can register their grievances through multiple service avenues:

- Call our helpline number 1-860-266-9966 (Call charges apply)
- Email us at life.complaints@tataaia.com
- Login to online Policy account on www.tataaia.com
- Visit any of the nearest Tata AIA Life branches or CAMS Service Centers
- Contact Your Tata AIA Life Agent / Distributor
- **Write to us on the following address:**
Customer Service Department
Tata AIA Life Insurance Company Ltd.,
9th Floor, B - Wing, I-Think Techno Campus,
Behind TCS (Lodha), Pokhran Road No.2,
Thane (West), Mumbai – 400 607

- We shall acknowledge a customer's grievance immediately through SMS/ email wherever available, along with the information on the turn-around-time to resolve the complaint.
- We shall provide the customer with an equitable resolution within 14 (fourteen) days of receipt of the grievance.
- In case customers wishes to contact us during the course of the assessment, they can contact us at any of the above-mentioned touch points.
- A complaint/grievance shall be considered as resolved where the Policyholder has not responded to the Company within 8 (eight) weeks of the Company's written response.

2) Escalation Mechanism

In case the customer is not satisfied with the resolution provided by the Company, or has not received any response within the stipulated timelines, he, may write to the following official for resolution:

- Level of Escalation: Grievance Redressal Officer (GRO) - A senior member at corporate office of the Company shall be designated as the GRO.
- For escalations, customers can email to GRO@tataaia.com or write to –
Grievance Redressal Officer (GRO)
Tata AIA Life Insurance Company Limited,
9th Floor, B - Wing, I-Think Techno Campus,
Behind TCS (Lodha),
Thane (West), Mumbai – 400 607

We request our customers to follow the escalation mechanism in case of non-receipt of response or unsatisfactory response from the concerned persons mentioned above.

If You are not satisfied with the response or do not receive a response from us within 14 (fourteen) days, You may approach the Grievance Cell of the

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Insurance Regulatory and Development Authority of India (IRDAI) on the following contact details:

- IRDAI Grievance Call Centre (IGCC) TOLL FREE NO: 155255 or 18004254732
- Email ID: complaints@irdai.gov.in
- You can also register your complaint online at Bima Bharosa System - <https://bimabharosa.irdai.gov.in>
- Address for communication for complaints by paper:
Consumer Affairs Department- Grievance Redressal Cell.
Insurance Regulatory and Development Authority of India
Sy.No.115/1, Financial District,
Nanakramguda,
Gachibowli, Hyderabad – 500 032.

3) Insurance Ombudsman:

Where the redressal provided by the Company is not satisfactory despite the escalation above, the customer may represent the case to the Ombudsman for Redressal of the grievance, if it pertains to the following:

- Delay in settlement of claim
- Partial or total rejection of claim
- Dispute with regard to premium
- Misrepresentation of policy terms and conditions
- Legal construction of the policy in so far as dispute relates to claim
- Grievance relating to policy servicing
- Issuance of policy which is not in conformity with proposal form
- Non- issuance of your insurance document and
- Any other matter resulting from the violation of provisions of the Insurance Act, 1938 or the regulations, circulars, guidelines or instructions issued by the IRDAI from time to time or the terms and conditions of the policy contract, in so far as they relate to issues mentioned hereinabove.

Please refer to our website www.tataaia.com for further details in this regard.

The list of Ombudsman address is attached as **Annexure 1.**

The complaint should be made in writing duly signed by the complainant or through his legal heirs, nominee or assignee, and shall state clearly the name and address of the complainant, the name of the branch or office of the insurer against whom the complaint is made, the facts giving rise to the complaint, supported by documents, the nature and extent of the loss caused to the complainant and the relief sought from the Insurance Ombudsman. As per provision 14(3) of the Insurance Ombudsman Rules, 2017, the complaint to the Ombudsman can be made, within a period of one year provided it is not simultaneously under any litigation:

- Only if the grievance has been rejected by the Grievance Redressal Machinery of the Insurer; or
- the complainant had not received any reply within a period of 30 (thirty) days after the Insurer received his representation; irrespective of the complaint lying in different stages of the grievance redressal process; or
- the complainant is not satisfied with the reply given to him by the insurer; or
- If it is not simultaneously under any litigation.

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Annexure 1

NAMES OF OMBUDSMAN AND ADDRESSES OF OMBUDSMAN CENTRES		
Office of the Ombudsman	Details	Jurisdiction of Office (Union Territory, District)
AHMEDABAD	Office of the Insurance Ombudsman, Jeevan Prakash Building, 6th floor, Tilak Marg, Relief Road, Ahmedabad – 380 001. Tel.: 079 - 25501201/02 Email: oio.ahmedabad@cioins.co.in	Gujarat, Dadra & Nagar Haveli, Daman and Diu.
BENGALURU	Office of the Insurance Ombudsman, Jeevan Soudha Building, PID No. 57-27-N-19 Ground Floor, 19/19, 24th Main Road, JP Nagar, Ist Phase, Bengaluru – 560 078. Tel.: 080 - 26652048 / 26652049 Email: oio.bengaluru@cioins.co.in	Karnataka.
BHOPAL	Office of the Insurance Ombudsman, 1s floor, “Jeevan Shikha” 60-B, Hoshangabad Road, Opp. Gayatri Mandir, Arera Hills Bhopal – 462011 Tel.: 0755 - 2769201 / 2769202/ 276903 Email: oio.bhopal@cioins.co.in	Madhya Pradesh, Chattisgarh.
BHUBANESHWAR	Office of the Insurance Ombudsman, 62, Forest park, Bhubneswar – 751 009. Tel.: 0674 - 2596461 / 2596455/ 2596429/ 2596003 Email: oio.bhubaneswar@cioins.co.in	Odisha
CHANDIGARH	Office of the Insurance Ombudsman, Jeevan Deep Building SCO 20-27, Ground Floor Sector- 17A Chandigarh – 160017 Tel.: 0172 - 2706468 Email: oio.chandigarh@cioins.co.in	Punjab, Haryana (excluding Gurugram, Faridabad, Sonapat and Bahadurgarh), Himachal Pradesh, Union Territories of Jammu & Kashmir, Ladakh & Chandigarh.
CHENNAI	Office of the Insurance Ombudsman, Fatima Akhtar Court, 4th Floor, 453, Anna Salai, Teynampet, CHENNAI – 600 018. Tel.: 044 - 24333668 / 24333678 Email: oio.chennai@cioins.co.in	Tamil Nadu, Puducherry Town and Karaikal (which are part of Puducherry).
DELHI	Office of the Insurance Ombudsman, 2/2 A, Universal Insurance Building, Asaf Ali Road, New Delhi – 110 002. Tel.: 011 - 46013992/23213504/23232481 Email: oio.delhi@cioins.co.in	Delhi & following Districts of Haryana - Gurugram, Faridabad, Sonapat & Bahadurgarh.
GUWAHATI	Office of the Insurance Ombudsman, Jeevan Nivesh, 5th Floor, Near. Pan Bazar S.S. Road, Guwahati – 781001(ASSAM).	Assam, Meghalaya, Manipur, Mizoram, Arunachal Pradesh, Nagaland and Tripura.

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NAMES OF OMBUDSMAN AND ADDRESSES OF OMBUDSMAN CENTRES		
Office of the Ombudsman	Details	Jurisdiction of Office (Union Territory, District)
	Tel.: 0361 - 2632204/2602205/ 2631307 Email: oio.guwahati@cioins.co.in	
HYDERABAD	Office of the Insurance Ombudsman, 6-2-46, 1st floor, "Moin Court", Lane Opp Hyundai Showroom A. C. Guards, Lakdi-Ka-Pool, Hyderabad - 500 004. Tel.: 040 - 23312122 / 23376991 / 23376599 / 23328709 / 23325325 Email: oio.hyderabad@cioins.co.in	Andhra Pradesh, Telangana, Yanam and part of Territory of Puducherry.
JAIPUR	Office of the Insurance Ombudsman, Jeevan Nidhi – II Bldg., Gr. Floor, Bhawani Singh Marg, Jaipur - 302 005. Tel.: 0141 – 2740363 Email: oio.jaipur@cioins.co.in	Rajasthan.
KOCHI	Office of the Insurance Ombudsman, 10 th Floor, Jeevan Prakash, LIC Building, Opp to Maharaja's College Ground, M.G. Road, Kochi – 682011 Tel.: 0484 - 2358759 Email: oio.ernakulam@cioins.co.in	Kerala, Lakshadweep, Mahe-a part of Puducherry.
KOLKATA	Office of the Insurance Ombudsman, Hindustan Bldg. Annexe, 7th Floor, 4, C.R. Avenue, KOLKATA - 700 072. Tel.: 033 - 22124339 / 22124341 Email: oio.kolkata@cioins.co.in	West Bengal, Sikkim, Andaman & Nicobar Islands.
LUCKNOW	Office of the Insurance Ombudsman, 6th Floor, Jeevan Bhawan, Phase-II, Nawal Kishore Road, Hazratganj, Lucknow - 226 001. Tel.: 0522 - 4002082/3500613 Email: oio.lucknow@cioins.co.in	Districts of Uttar Pradesh: Lalitpur, Jhansi, Mahoba, Hamirpur, Banda, Chitrakoot, Allahabad, Mirzapur, Sonbhadra, Fatehpur, Pratapgarh, Jaunpur, Varanasi, Gazipur, Jalaun, Kanpur, Lucknow, Unnao, Sitapur, Lakhimpur, Bahraich, Barabanki, Raebareli, Sravasti, Gonda, Faizabad, Amethi, Kaushambi, Balrampur, Basti, Ambedkarnagar, Sultanpur, Maharajgang, Santkabirnagar, Azamgarh, Kushinagar, Gorkhpur, Deoria, Mau,

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NAMES OF OMBUDSMAN AND ADDRESSES OF OMBUDSMAN CENTRES		
Office of the Ombudsman	Details	Jurisdiction of Office (Union Territory, District)
		Ghazipur, Chandauli, Ballia, Sidharathnagar.
MUMBAI	Office of the Insurance Ombudsman, 3rd Floor, Jeevan Seva Annexe, S. V. Road, Santacruz (W), Mumbai - 400 054. Tel.: 022 – 69038800/27/29/31/32/33 Email: oiio.mumbai@cioins.co.in	Metropolitan Region excluding wards in Mumbai – i.e M/E, M/W, N, S and T covered under Office of Insurance Ombudsman Thane and excluding areas of Navi Mumbai
NOIDA	Office of the Insurance Ombudsman, Bhagwan Sahai Palace 4th Floor, Main Road, Naya Bans, Sector 15, Distt: Gautam Buddh Nagar, U.P-201301. Tel.: 0120- 2514252 / 2514253 Email: oiio.noida@cioins.co.in	State of Uttaranchal and the following Districts of Uttar Pradesh: Agra, Aligarh, Bagpat, Bareilly, Bijnor, Budaun, Bulandshehar, Etah, Kanooj, Mainpuri, Mathura, Meerut, Moradabad, Muzaffarnagar, Oraiyya, Pilibhit, Etawah, Farrukhabad, Firozbad, Gautam Buddh Nagar, Ghaziabad, Hardoi, Shahjahanpur, Hapur, Shamli, Rampur, Kashganj, Sambhal, Amroha, Hathras, Kanshiramnagar, Saharanpur.
PATNA	2nd Floor, Lalit Bhawan, Bailey Road, Patna 800 001. Tel.: 0612-2547068 Email: oiio.patna@cioins.co.in	Bihar, Jharkhand.
PUNE	Office of the Insurance Ombudsman, Jeevan Darshan Bldg., 3rd Floor, C.T.S. No.s. 195 to 198, N.C. Kelkar Road, Narayan Peth, Pune – 411 030. Tel.: 020-24471175 Email: oiio.pune@cioins.co.in	State of Goa and State of Maharashtra excluding areas of Navi Mumbai, Thane district, Palghar District, Raigad district & Mumbai Metropolitan Region
THANE	Office of the Insurance Ombudsman, 2nd Floor, Jeevan Chintamani Building, Vasantrao Naik Mahamarg, Thane (West)- 400604 Tel.: 022-20812868/69 Email: oiio.thane@cioins.co.in	Area of Navi Mumbai, Thane District, Raigad District, Palghar District and wards of Mumbai , M/East, M/West, N, S and T."

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For further information or latest updated list of Ombudsman Office addresses, kindly visit the IRDA of India website <https://www.cioins.co.in/Ombudsman> - Ombudsman / List of Insurance Ombudsmen OR our website www.tataaia.com.

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Annexure 2

A. Section 38 - Assignment and Transfer of Insurance Policies

Assignment or transfer of a policy should be in accordance with Section 38 of the Insurance Act, 1938 as amended by Insurance Laws (Amendment) Act, 2015. The extant provisions in this regard are as follows:

01. This policy may be transferred/assigned, wholly or in part, with or without consideration.
02. An Assignment may be effected in a policy by an endorsement upon the policy itself or by a separate instrument under notice to the Insurer.
03. The instrument of assignment should indicate the fact of transfer or assignment and the reasons for the assignment or transfer, antecedents of the assignee and terms on which assignment is made.
04. The assignment must be signed by the transferor or assignor or duly authorized agent and attested by at least one witness.
05. The transfer of assignment shall not be operative as against an insurer until a notice in writing of the transfer or assignment and either the said endorsement or instrument itself or copy thereof certified to be correct by both transferor and transferee or their duly authorised agents have been delivered to the insurer.
06. Fee to be paid for assignment or transfer can be specified by the Authority through Regulations.
07. On receipt of notice with fee, the insurer should Grant a written acknowledgement of receipt of notice. Such notice shall be conclusive evidence against the insurer of duly receiving the notice.
08. If the insurer maintains one or more places of business, such notices shall be delivered only at the place where the policy is being serviced.
09. The insurer may accept or decline to act upon any transfer or assignment or endorsement, if it has sufficient reasons to believe that it is
 - a. not bonafide or
 - b. not in the interest of the Policyholder or
 - c. not in public interest or
 - d. is for the purpose of trading of the insurance policy.
10. Before refusing to act upon endorsement, the Insurer should record the reasons in writing and communicate the same in writing to Policyholder within 30 days from the date of Policyholder giving a notice of transfer or assignment.
11. In case of refusal to act upon the endorsement by the Insurer, any person aggrieved by the refusal may prefer a claim to IRDAI within 30 days of receipt of the refusal letter from the Insurer.
12. The priority of claims of persons interested in an insurance policy would depend on the date on which the notices of assignment or transfer is delivered to the insurer; where there are more than one instruments

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of transfer or assignment, the priority will depend on dates of delivery of such notices. Any dispute in this regard as to priority should be referred to Authority.

13. Every assignment or transfer shall be deemed to be absolute assignment or transfer and the assignee or transferee shall be deemed to be absolute assignee or transferee, except

- a. where assignment or transfer is subject to terms and conditions of transfer or assignment OR
- b. where the transfer or assignment is made upon condition that
 - i. the proceeds under the policy shall become payable to Policyholder or nominee(s) in the event of assignee or transferee dying before the Life Assured OR
 - ii. the Life Assured surviving the term of the policy

Such conditional assignee will not be entitled to obtain a loan on policy or surrender the policy. This provision will prevail notwithstanding any law or custom having force of law which is contrary to the above position.

14. In other cases, the insurer shall, subject to terms and conditions of assignment, recognize the transferee or assignee named in the notice as the absolute transferee or assignee and such person

- a. shall be subject to all liabilities and equities to which the transferor or assignor was subject to at the date of transfer or assignment and
- b. may institute any proceedings in relation to the policy
- c. obtain loan under the policy or surrender the policy without obtaining the consent of the transferor or assignor or making him a party to the proceedings

15. Any rights and remedies of an assignee or transferee of a life insurance policy under an assignment or transfer effected before commencement of the Insurance Laws (Amendment) Act, 2015 shall not be affected by this section.

[Disclaimer: This is not a comprehensive list of amendments of Insurance Laws (Amendment) Act, 2015 and only a simplified version prepared for general information. Policyholders are advised to refer to Insurance Laws (Amendment) Act, 2015 for complete and accurate details.]

B. Section 39 - Nomination by Policyholder

Nomination of a life insurance Policy is as below in accordance with Section 39 of the Insurance Act, 1938 as amended by Insurance Laws (Amendment) Act, 2015. The extant provisions in this regard are as follows:

01. The Policyholder of a life insurance on his own life may nominate a person or persons to whom money secured by the policy shall be paid in the event of his death.

02. Where the nominee is a minor, the Policyholder may appoint any person to receive the money secured by the policy in the event of Policyholder's death during the minority of the nominee. The manner of appointment to be laid down by the insurer.

03. Nomination can be made at any time before the maturity of the policy.

04. Nomination may be incorporated in the text of the policy itself or may be endorsed on the policy communicated to the insurer and can be registered by the insurer in the records relating to the policy.

05. Nomination can be cancelled or changed at any time before policy matures, by an endorsement or a further endorsement or a will as the case may be.

06. A notice in writing of Change or Cancellation of nomination must be delivered to the insurer for the insurer to be liable to such nominee. Otherwise, insurer will not be liable if a bonafide payment is made to the person named in the text of the policy or in the registered records of the insurer.

07. Fee to be paid to the insurer for registering change or cancellation of a nomination can be specified by the Authority through Regulations.

08. On receipt of notice with fee, the insurer should grant a written acknowledgement to the Policyholder of having registered a nomination or cancellation or change thereof.

09. A transfer or assignment made in accordance with Section 38 shall automatically cancel the nomination except in case of assignment to the insurer or other transferee or assignee for purpose of loan or against security or its reassignment after repayment. In such case, the nomination will not get cancelled to the extent of insurer's or transferee's or assignee's interest in the policy. The nomination will get revived on repayment of the loan.

10. The right of any creditor to be paid out of the proceeds of any policy of life insurance shall not be affected by the nomination.

11. In case of nomination by Policyholder whose life is insured, if the nominees die before the Policyholder, the proceeds are payable to Policyholder or his heirs or legal representatives or holder of succession certificate.

12. In case nominee(s) survive the person whose life is insured, the amount secured by the policy shall be paid to such survivor(s).

13. Where the Policyholder whose life is Life Assured nominates his

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- a. parents or
- b. spouse or
- c. children or
- d. spouse and children
- e. or any of them

the nominees are beneficially entitled to the amount payable by the insurer to the Policyholder unless it is proved that Policyholder could not have conferred such beneficial title on the nominee having regard to the nature of his title.

14. If nominee(s) die after the Policyholder but before his share of the amount secured under the policy is paid, the share of the expired nominee(s) shall be payable to the heirs or legal representative of the nominee or holder of succession certificate of such nominee(s).

15. The provisions of sub-section 7 and 8 (13 and 14 above) shall apply to all life insurance policies maturing for payment after the commencement of Insurance Laws (Amendment) Act, 2015.

16. If Policyholder dies after maturity but the proceeds and benefit of the policy has not been paid to him because of his death, his nominee(s) shall be entitled to the proceeds and benefit of the policy.

17. The provisions of Section 39 are not applicable to any life insurance policy to which Section 6 of Married Women's Property Act, 1874 applies or has at any time applied except where before or after Insurance Laws (Amendment) Act, 2015., a nomination is made in favour of spouse or children or spouse and children whether or not on the face of the policy it is mentioned that it is made under Section 39. Where nomination is intended to be made to spouse or children or spouse and children under Section 6 of MWP Act, it should be specifically mentioned on the policy. In such a case only, the provisions of Section 39 will not apply.

[Disclaimer: This is not a comprehensive list of amendments of Insurance Laws (Amendment) Act, 2015 and only a simplified version prepared for general information. Policyholders are advised to refer to Insurance Laws (Amendment) Act, 2015 for complete and accurate details.]

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Annexure 4

C. Section 45 – Policy shall not be called in question on the ground of mis-statement after three years

Provisions regarding policy not being called into question in terms of Section 45 of the Insurance Act, 1938, as amended by Insurance Laws (Amendment) Act, 2015. are as follows:

01. No Policy of Life Insurance shall be called in question **on any ground whatsoever** after expiry of 3 yrs from

- a. the date of issuance of policy or
- b. the date of commencement of risk or
- c. the date of revival of policy or
- d. the date of rider to the policy

whichever is later.

02. On the ground of fraud, a policy of Life Insurance may be called in question within 3 years from

- a. the date of issuance of policy or
- b. the date of commencement of risk or
- c. the date of revival of policy or
- d. the date of rider to the policy

whichever is later.

For this, the insurer should communicate in writing to the Life Assured or legal representative or nominee or assignees of insured, as applicable, mentioning the ground and materials on which such decision is based.

03. Fraud means any of the following acts committed by Life Assured or by his agent, with the intent to deceive the insurer or to induce the insurer to issue a life insurance policy:

- a. The suggestion, as a fact of that which is not true and which the Life Assured does not believe to be true;
- b. The active concealment of a fact by the Life Assured having knowledge or belief of the fact;
- c. Any other act fitted to deceive; and
- d. Any such act or omission as the law specifically declares to be fraudulent.

04. Mere silence is not fraud unless, depending on circumstances of the case, it is the duty of the Life Assured or his agent keeping silence to speak or silence is in itself equivalent to speak.

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05. No Insurer shall repudiate a life insurance Policy on the ground of Fraud, if the Life Assured/beneficiary can prove that the misstatement was true to the best of his knowledge and there was no deliberate intention to suppress the fact or that such mis-statement of or suppression of material fact are within the knowledge of the insurer. Onus of disproving is upon the Policyholder, if alive, or beneficiaries.

06. Life insurance Policy can be called in question within 3 years on the ground that any statement of or suppression of a fact material to expectancy of life of the Life Assured was incorrectly made in the proposal or other document basis which policy was issued or revived or rider issued. For this, the insurer should communicate in writing to the Life Assured or legal representative or nominee or assignees of insured, as applicable, mentioning the ground and materials on which decision to repudiate the policy of life insurance is based.

07. In case repudiation is on ground of mis-statement and not on fraud, the premium collected on policy till the date of repudiation shall be paid to the Life Assured or legal representative or nominee or assignees of insured, within a period of 90 days from the date of repudiation.

08. Fact shall not be considered material unless it has a direct bearing on the risk undertaken by the insurer. The onus is on insurer to show that if the insurer had been aware of the said fact, no life insurance policy would have been issued to the insured.

09. The insurer can call for proof of age at any time if he is entitled to do so and no policy shall be deemed to be called in question merely because the terms of the policy are adjusted on subsequent proof of age of life insured. So, this Section will not be applicable for questioning age or adjustment based on proof of age submitted subsequently.

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